

**Subject: WITHOUT PREJUDICE SAVE AS
TO COSTS — WC/2024/227 Shepherd —
material development**

From: Cory Shepherd

coryshepherd1@hotmail.com

To: Renee Matheson

renee.matheson@oir.qld.gov.au

Sent: Friday 31 July at 10:46

Dear Ms Matheson,

I write to inform the Respondent of a development in circumstances relevant to this appeal, and to invite reconsideration of its position.

This letter does not revive my offer of 1 July 2026, which lapsed on 22 July 2026. Any renewed offer will reflect the position as it then stands. The matters set out in that offer are not repeated here.

The development

On 2 July 2026 I was advised by my line manager that I could not return to work until a completed Employee Capability Checklist was provided, and that shifts not worked would be processed as sick leave. I obtained and provided the completed checklist on 3 July 2026. It certifies me fit to work with identified restrictions, and Metro South Health has acknowledged in writing that I have "been certified fit to return to work effective from 3 July 2026."

I have nonetheless been directed not to attend work since that date. That direction has now continued for four weeks. I have received no wages during that period, my accrued leave has been debited, and I have met the cost of the medical evidence the Health Service required. At my direction earlier this year, my income protection

benefits were reduced to partial payments and subsequently stopped altogether, as I had returned to work. No benefit is payable to me. I therefore have no income from any source.

On 30 July 2026 the Health Service advised that the further medical request said to be the reason I cannot return is "progressing for delegate approval," and that it is "unable to guarantee" when it will be available. There is accordingly no date by which the position is expected to change.

Why I raise it with the Respondent

In correspondence of 15 July 2026, Metro South Health stated that the obligation to provide rehabilitation and suitable duties under the Workers' Compensation and Rehabilitation Act 2003 (Qld) applies to workers with accepted workers' compensation claims, and does not extend to me.

The consequence is that the decision under appeal is producing continuing detriment. That detriment is neither historical nor incidental to the appeal: on the employer's own stated reasoning, it is the reason I am without rehabilitation, without suitable duties and without income. It accrues while the appeal remains, it presently has no end date, and it will continue for as long as the rejection stands.

I would add that the Health Service has, to date, declined to identify any power for the direction that I do not attend work, any duty of my position that I am unable to perform, or any risk said to arise from my performing it.

What I ask

I note the Respondent's advice of 16 July 2026 that it would advise me as soon as possible should its position change. I ask that the Respondent reconsider its position considering the above.

I remain willing to resolve this matter and would welcome the opportunity to confer at any time.

Kind regards,

Cory Lea Shepherd

Appellant (Self-Represented)

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